

Amit Gupta v. The Electricity Ombudsman

High Court of Judicature at Allahabad · Division Bench · 8 November 2017 · Writ-C No. 40958 of 2015 · **Writ dismissed as no case made out and apparently infructuous.**

HEADNOTE

Division Bench dismissed a writ seeking certiorari against the Electricity Ombudsman's confirmation of a KESCO CGRF order and mandamus for refund of excess demand charges under Annexure-7.1 of the U.P. Electricity Supply Code, 2005. Called in revised with none for the petitioner, the Court after perusing the record found no case for interference and treated the petition as infructuous or not pressed.

FACTUAL SUMMARY

Amit Gupta, a KESCO consumer at Kanpur, sought certiorari to quash the Electricity Ombudsman's 26 November 2014 order in Representation No. 102 of 2014, which had confirmed the Kanpur CGRF (KESCO) order of 13 June 2014 in Complaint No. 47 of 2014. He also sought mandamus for refund of excess demand charges with penalty under Annexure-7.1 of the U.P. Electricity Supply Code, 2005, until load reduction to 130 kVA. Called in revised, none appeared for him.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.1

demand-charge-refund-writ

HOLDING

A writ seeking quash of Ombudsman and CGRF orders and mandamus for refund of excess demand charges under Annexure-7.1 of the Supply Code was dismissed: after perusing the record in the petitioner's absence, the Court found no case for interference and treated the petition as infructuous or not pressed. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER EXCESS DEMAND CHARGES WERE REFUNDABLE UNDER ANNEXURE-7.1 AND WHETHER THE CGRF AND OMBUDSMAN ORDERS WERE CORRECT ON MERITS.

Dismissed without deciding the billing dispute; counsel absent. ¶ 3-5